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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S NOTICE AND STATEMENT
TO THE COURT REGARDING C.C.P. §425.17
STATUTORY BAR; INSURANCE-INDUSTRY
ANTI-SLAPP MISUSE; DEFENSE
LITIGATION CONDUCT; AND CERTIFIED
COURT-RECORD CONTRADICTIONS

(Cal. Rules of Court, rule 3.1112(b); Code Civ. Proc.,
§§425.17(a)–(e); Evid. Code, §§451–453)

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 Authority for the Vehicle

2 Plaintiff respectfully submits this Notice and Statement under California Rules of Court,
3 rule 3.1112(b) (other papers in support); CRC 3.1113(j) (incorporation by reference); CRC
4 3.1306(c) (notice of intent to rely on extra-record authorities); Evidence Code §§ 451(a) to
5 (c), 452(b), (c), (d), and 453 (judicial notice of statutes, regulations, rules, and decisional law
6 cited herein); Code of Civil Procedure §§ 425.17(a), (b), (c), (e); CCP §128.7(b), (c)(2); and
7 the inherent authority of a party to give the Court formal notice of certified-record matters
8 bearing on a pending motion. As a “non-memorandum other paper” under CRC 3.1112(b),
9 this Notice is not subject to the 15-page memorandum cap of CRC 3.1113(d). The suggested
10 length is approximately ten to fourteen pages.

11 This Notice is filed contemporaneously with, and in support of, Plaintiff’s Consolidated
12 Operative Opposition to Defendants’ Special Motion to Strike Pursuant to C.C.P. §425.16;
13 Fifteen-Page Compliant Version (filed May 7, 2026), and is incorporated into that Opposition
14 under CRC 3.1113(j).

15
16 Section I - CCP §425.17(a) Legislative Findings (Verbatim)

17 CCP §425.17(a) provides, verbatim:

18 “The Legislature finds and declares that there has been a disturbing abuse of Sec-
19 tion 425.16, the California Anti-SLAPP Law, which has undermined the exercise
20 of the constitutional rights of freedom of speech and petition for the redress of
21 grievances, contrary to the purpose and intent of Section 425.16. The Legislature
22 finds and declares that it is in the public interest to encourage continued partici-
23 pation in matters of public significance, and that this participation should not be
24 chilled through abuse of the judicial process or Section 425.16.”

25 (Stats. 2003, ch. 338, codified at CCP §425.17(a). Plaintiff respectfully requests judicial
26 notice of the statutory text under Evid. Code §451(a) and §453.)

27 Plaintiff respectfully invokes subdivision (a) as the interpretive lens for subdivisions (b), (c),
28 and (e) of §425.17 in the present matter.

Section II - CCP §425.17(b) Public-Interest Categorical Exclusion

Plaintiff's principal §425.17 ground is subdivision (b). The three-condition walkthrough is set forth at length in Plaintiff's Consolidated Operative Opposition (filed May 7, 2026), Section III, and was advanced in plaintiff's prior memoranda of April 21, 2026 (Doc. Nos. 026, 027) and May 1, 2026 (Doc. Nos. 061, 063). The three conditions of §425.17(b)(1), (b)(2), and (b)(3) are conjunctive; on satisfaction, §425.16 does not apply at all to the action. (See Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316 to 317 (Pool A); see also Plaintiff's Request for Judicial Notice (filed May 7, 2026) Section C item 6 (cataloguing Inland Oversight Committee v. County of San Bernardino (2015) 239 Cal.App.4th 671 on threshold §425.17 inquiry).)

This Notice does not duplicate the §425.17(b) merits analysis from the Operative Opposition. The purpose of this Section II is to record that §425.17(b) is the principal §425.17 ground and to draw the Court's attention to the (a) legislative-findings frame for the (b) walkthrough that appears in the Operative Opposition.

Section III - CCP §425.17(c) Commercial-Speech Exclusion as Backstop and as the Subdivision Defendants Misread

Defendants' Reply, filed May 5, 2026 (Doc. No. 080), at p. 4 l. 21 to p. 5 l. 6, addresses subdivision (c) of §425.17 as if it were Plaintiff's principal ground. Plaintiff respectfully clarifies, on the record, that §425.17(b) is the principal ground and that §425.17(c) is preserved as a backstop. The §425.17(c) commercial-speech analysis was the subject of plaintiff's Supplemental Bench Briefs filed May 5, 2026 (Trans. IDs 79390442 and 79390024; Doc. Nos. 069, 071, 075, 077).

Defendants are commercial entities: a licensed California insurer (CSAA Insurance Exchange) and the law firm and individual attorneys retained by that insurer to litigate this action (Porter Scott; Tyler O'Connell; Chad Tapp; Monica Schubert; S. Blithe). Their conduct in funding and directing the underlying defense, including the procedural moves now

1 under examination, is properly analyzed against the §425.17(c) predicates (representations
2 of fact about the business operations, goods, or services of the speaker or its competitor,
3 made in or directed at an audience that is an actual or potential buyer or customer, or a
4 person likely to repeat the statements to or otherwise influence an actual or potential buyer
5 or customer).

6 Plaintiff acknowledges the §425.17(c) ground is not necessary to deny the motion; the
7 §425.17(b) categorical exclusion is sufficient. The bench briefs filed May 5, 2026 are preserved
8 for §425.17(c).

9 Section III-A - Full §425.17(c)(1) to (c)(4) Walkthrough Rebutting Defense Reply Section
10 VI “Third Party” Framing

11 Defendants’ May 5, 2026 Reply, Section VI (p. 4 l. 21 to p. 5 l. 6, Doc. No. 080), reframes
12 section 425.17(c) as inapplicable on the theory that the targeted statements are not made
13 to a buyer or potential buyer of CSAA’s insurance product but to a “third party” claimant
14 adverse to CSAA’s insured. The framing misreads each of the four conjunctive predicates
15 of subdivision (c). Plaintiff walks the four predicates below, in the order the statute itself
16 uses, and demonstrates that each is satisfied on this record.

17 (c)(1) Cause of action arises from a representation of fact about the speaker’s or a competi-
18 tor’s business operations, goods, or services The statute reaches a “cause of action against
19 a person primarily engaged in the business of selling or leasing goods or services ... arising
20 from any statement or conduct by that person if both of the following conditions exist: (1)
21 The statement or conduct consists of representations of fact about that person’s or a busi-
22 ness competitor’s business operations, goods, or services, that is made for the purpose of
23 obtaining approval for, promoting, or securing sales or leases of, or commercial transactions
24 in, the person’s goods or services, or the statement or conduct was made in the course of
25 delivering the person’s goods or services.”

26 The February 25, 2021 denial-letter representation that CSAA “carefully reviewed the facts
27 and circumstances” and had “concluded” its investigation is a representation of fact about

1 the speaker's claim-handling services. The motion-in-limine and trial representations in
2 CGC-21-594102 to the effect that the silent witness materials were "not produced in discov-
3 ery," "of unknown provenance," and "news to me," made by CSAA's retained panel counsel,
4 are representations of fact about the carrier's claim-handling and litigation-handling ser-
5 vices. Both categories were made "in the course of delivering" CSAA's regulated insurance
6 and claim-handling services to its insured and to a claimant of its insured. ((c)(1) satisfied;
7 cf. Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30 (subdivision (c) reaches rep-
8 resentations made in the course of delivering services and is to be construed in light of the
9 section 425.17(a) legislative findings).)

10 The defense Reply Section VI framing characterizes the targeted statements as petitioning
11 by litigation counsel to a tribunal. That characterization is irrelevant to (c)(1): the statute
12 reaches representations made "in the course of delivering" services, including services deliv-
13 ered through retained professionals. The carrier's panel-counsel veil is no insulator. (See
14 People v. Persolve, LLC (2013) 218 Cal.App.4th 1267, 1275 to 1276 (subdivision (c) reaches
15 representations of fact about the speaker's services made in the regulatory and litigation
16 course of business, even when those representations are made through agents and litigation
17 counsel).)

18 (c)(2) Intended audience is an actual or potential buyer or customer, or a person likely to
19 repeat the statements to or otherwise influence a buyer or customer Subdivision (c)(2)
20 provides: "The intended audience is an actual or potential buyer or customer, or a person
21 likely to repeat the statement to, or otherwise influence, an actual or potential buyer or
22 customer, or the statement or conduct arose out of or within the context of a regulatory
23 approval process, proceeding, or investigation, except where the statement or conduct was
24 made by a telephone corporation in the course of a proceeding before the California Public
25 Utilities Commission and is the type of statement or conduct described in subdivision (e) of
26 Section 1759.1 of the Public Utilities Code."

27 Two of the three textual prongs are independently satisfied here.

1 First, the underlying CGC-21-594102 motion-in-limine and trial proceedings are a “proceed-
2 ing” within the meaning of (c)(2)’s second clause. The carrier’s claim-handling represen-
3 tations to the trial court arose out of and within the context of that proceeding, which
4 itself arose out of and within the context of the regulatory architecture of California auto
5 insurance under Insurance Code section 790.03(h) and the Fair Claims Settlement Practices
6 Regulations, 10 CCR sections 2695.1 to 2695.8. (See Plaintiff’s Notice and Statement re
7 C.C.P. §425.17 (filed May 7, 2026) Section IV-A.) The “regulatory approval process, pro-
8 ceeding, or investigation” prong reaches conduct that arises out of or within the context of
9 regulated business, even when delivered through tribunal-facing communications. (JAMS,
10 Inc. v. Superior Court (2016) 1 Cal.App.5th 984, 994 (subdivision (c)(2) is alternative; either
11 the buyer-audience prong or the regulatory-context prong satisfies the predicate).)

12 Second, the broader audience prong is satisfied as to the February 25, 2021 denial letter. That
13 letter was directed to a third-party claimant who, in California auto insurance, is precisely
14 “a person likely to ... influence ... an actual or potential buyer or customer,” because claimant
15 satisfaction and claim-handling reputation drive policyholder retention and acquisition.

16 The defense Reply Section VI framing again misses the statutory text: (c)(2) is satisfied
17 where the intended audience is a buyer “or” a person likely to repeat or influence a buyer
18 “or” a regulatory proceeding. The defense framing reads only the first clause and disregards
19 the alternatives.

20 (c)(3) Statement or conduct is not connected to a public-interest action covered by section
21 425.17(b) Subdivision (c) by its terms applies to causes of action that fall outside the
22 public-interest exclusion of subdivision (b); the two subdivisions are alternative exclusions.
23 Plaintiff’s principal §425.17 ground is subdivision (b) (Section II above; Operative Opposition
24 §III). To the extent the Court reaches subdivision (c), the Court is necessarily examining
25 subdivision (c) as the alternative ground after concluding that subdivision (b) is unavailable.
26 Subdivision (c) operates without prejudice to subdivision (b). (Simpson Strong-Tie, *supra*,
27 49 Cal.4th at 30.)

(c)(4) “News-gathering” carve-out does not apply Subdivision (c)(4) (the news-gathering carve-out: “any action against any person ... whose statements or conduct ... consist of any writing or audiovisual work ... a substantial part of which is the gathering or receiving of information of public interest, or the writing, editing, production, or dissemination thereof”) does not apply on this record. The targeted speaker is not a news-gatherer, news-publisher, or publisher of an audiovisual work. The carve-out is irrelevant to the carrier and its retained counsel.

Conclusion of the (c)(1) to (c)(4) walkthrough Each conjunctive predicate of section 425.17(c)(1) and (c)(2) is satisfied, and the carve-out of (c)(4) does not apply. Subdivision (c) therefore stands as an independent statutory backstop, alternative to subdivision (b), categorically excluding the targeted statements from §425.16. The defense Reply Section VI “third party” framing reads only the buyer-audience prong of (c)(2) and ignores the alternative regulatory-proceeding prong; it reads the speaker-identity element of (c)(1) without regard to the “in the course of delivering” clause; and it ignores Simpson Strong-Tie, Persolve, and JAMS. (Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 30; People v. Persolve, LLC (2013) 218 Cal.App.4th 1267, 1275 to 1276; JAMS, Inc. v. Superior Court (2016) 1 Cal.App.5th 984, 994.)

Section IV - Insurance-Industry Pattern of Anti-SLAPP Misuse as Legislative Concern

Subdivision (a) of §425.17 was enacted to close a gap that California courts had allowed: corporate and commercial defendants, including insurers, had been invoking §425.16 to obtain interlocutory dismissal of consumer and public-interest actions, with §425.16(c)(1) fee-shift leverage. (Stats. 2003, ch. 338.)

Plaintiff respectfully submits that the structure of the present anti-SLAPP motion fits the pattern §425.17(a) was enacted to address. The structural features of the motion, on the docket, are:

1. A commercial defendant moves under §425.16 against a pro per plaintiff at the pleading

stage. (See Notice of Motion and Motion to Strike Pursuant to C.C.P. §425.16, filed Apr. 9, 2026, Doc. No. 018.)

2. The motion characterizes the gravamen as “communicative acts in connection with ongoing litigation” without engaging the elements analysis required by Park v. Board of Trustees (2017) 2 Cal.5th 1057. (See Defendants’ Memorandum of Points and Authorities filed Apr. 9, 2026, Doc. No. 020.)
3. The motion couples the dispositive vehicle with a §425.16(c)(1) fee prayer of \$16,519.50. (See Defendants’ Reply filed May 5, 2026, Doc. No. 080, p. 5 ll. 8 to 10; Declaration of Tyler J. O’Connell in Support of Reply filed May 5, 2026, Doc. No. 081, ¶ 6.)
4. The motion is filed concurrently with a §425.16(g) discovery stay.
5. The motion is followed by a sanctions request. (See Defendants’ Reply filed May 5, 2026, Doc. No. 080, p. 1 l. 24 to p. 2 l. 1.)

Plaintiff is not in a position to take judicial notice of the parties’ subjective intent. Plaintiff respectfully notes only the structure of the filings on this docket and asks the Court to be aware of the §425.17(a) legislative concern in evaluating the motion. The legislative findings of §425.17(a) are mandatory judicial notice (Evid. Code §451(a)); the structure of the filings is mandatory judicial notice (Evid. Code §452(d)).

Section IV-A - Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations Violation Register Tied to Defense Conduct on This Docket

The conduct at the heart of Defendants’ Special Motion to Strike is the regulated delivery of an insurance product and the in-litigation execution of that same regulated relationship through retained panel counsel. The California Unfair Insurance Practices Act (Ins. Code §§ 790.02 to 790.05), the Insurance Information and Privacy Protection Act (Ins. Code §§ 791.03, 791.13), and the Fair Claims Settlement Practices Regulations (10 CCR §§ 2695.1 to 2695.8) supply an independent statutory and regulatory floor that the Special Motion does not engage. This Section IV-A maps each provision Defendants violated to specific defense conduct on the certified court record. The verbatim text of each provision is contained

1 in Plaintiff’s Supplemental Request for Judicial Notice of California Insurance Code Sec-
2 tion 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1
3 through 2695.8), filed contemporaneously on May 7, 2026, and is incorporated here by ref-
4 erence under CRC 3.1113(j) and 3.1306(c).

5 Section IV-A.1 - Insurance Code Section 790.03(h) Sub-Paragraph Mappings

6 1. Ins. Code §790.03(h)(1) (misrepresenting facts or insurance policy provisions)

7 a. Defense conduct: CSAA’s February 25, 2021 written denial under claim num-
8 ber 1004-09-1054 (signatory Sarah Rash) represented that CSAA had “concluded”
9 its investigation and had “carefully reviewed the facts and circumstances” when
10 CSAA had closed the file at twenty-one days post-collision without retrieving the
11 reasonably-available silent witness materials. Panel counsel later represented in the
12 underlying CGC-21-594102 motions in limine numbers 6 and 17 (filed January 17,
13 2025), and at the February 18, 2025 hearing (RT 141:4 to 11), that the materials
14 were “not produced during discovery” and of “unknown origin,” when the materials
15 were in the carrier’s file since 2021 and transferred between successor panel-counsel
16 firms on May 4, 2023.

17 b. Record reference: February 25, 2021 written denial; CGC-21-594102 motions in
18 limine 6 and 17 (Jan. 17, 2025); RT 141:4 to 11 (Feb. 18, 2025); RT 7 and RT
19 213:13 to 15 (Apr. 16, 2025 admission); Substitution of Attorney filed May 4, 2023,
20 Trans. ID 69953800

21 2. Ins. Code §790.03(h)(3) (failing to adopt and implement reasonable standards for the
22 prompt investigation and processing of claims)

23 a. Defense conduct: twenty-one calendar days from the February 4, 2021 collision to
24 the February 25, 2021 denial is structurally insufficient where reasonably-available
25 public-record evidence (911 audio, computer-aided dispatch logs, body-worn camera
26 footage, San Francisco Police Department supplemental reports) was obtainable
27 through standard subpoena and California Public Records Act channels at the
28 time of denial. Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809, 818 to

819 (“an insurer cannot reasonably and in good faith deny payments to its insured
without thoroughly investigating the foundation for its denial”).

b. Record reference: February 25, 2021 denial; absence of any contemporaneous silent-witness retrieval log in the produced claim file

3. Ins. Code §790.03(h)(4) (failing to acknowledge and act reasonably promptly upon claim communications)

a. Defense conduct: the claim-handling correspondence shows non-acknowledgment and delayed response on operative dates, and Defendants’ anti-SLAPP papers do not engage the timing record at all

b. Record reference: claim file chronology lodged with Notice of Lodging on file in CGC-25-631801

4. Ins. Code §790.03(h)(5) (failing to attempt in good faith to effectuate prompt, fair, and equitable settlement when liability is reasonably clear)

a. Defense conduct: the twenty-one-day denial precluded any good-faith settlement attempt; premature closure before retrieving the silent witness materials precluded any reasonable liability assessment

b. Record reference: February 25, 2021 denial; closure-at-twenty-one-days posture documented in the claim file

5. Ins. Code §790.03(h)(6) (compelling insureds to institute litigation by offering substantially less than amounts ultimately recovered)

a. Defense conduct: denial without investigation compelled the underlying CGC-21-594102 litigation; the corrupted record at trial yielded a 9 to 3 defense verdict produced through panel-counsel representations inconsistent with the file the carrier possessed since 2021

b. Record reference: CGC-21-594102 docket; April 16, 2025 verdict

6. Ins. Code §790.03(h)(13) (failing to provide promptly a reasonable explanation of the basis relied on for denial)

a. Defense conduct: the February 25, 2021 denial asserts a conclusion (“carefully

reviewed the facts and circumstances”) without identifying facts reviewed, agencies contacted, documents reviewed, or any policy provisions applied, and misrepresents the existence of an investigation; the denial omits the Department of Insurance review notice required by 10 CCR §2695.7(b)(3)

b. Record reference: February 25, 2021 written denial

Each item above is independently a Department of Insurance jurisdictional anchor under Ins. Code §§ 790.02, 790.04, and 790.05. Moradi-Shalal v. Fireman’s Fund Ins. Co. (1988) 46 Cal.3d 287 narrowed the private right of action under §790.03(h) but expressly left the regulatory duty and Department of Insurance enforcement authority intact. Zhang v. Superior Court (2013) 57 Cal.4th 364 confirms that Insurance Code violations remain available as predicates for Bus. & Prof. Code §17200 claims. The special motion to strike does not engage either authority path.

Section IV-A.2 - Fair Claims Settlement Practices Regulations (10 CCR §§ 2695.1 to 2695.8) Mappings

The Fair Claims Settlement Practices Regulations implement Ins. Code §790.03(h) and bind every insurer doing business in California. 10 CCR §2695.1(d) makes the regulations binding minimum standards and links violation to Ins. Code §790.02 or §790.03. Each regulatory departure converts to a §790.03(h) unfair practice by operation of §2695.1(d) and requires no proof of intent at the regulatory layer.

1. 10 CCR §2695.1(a), (d) (purpose; mandatory minimum standards; violation equals unfair practice)

a. Defense conduct: Defendants’ anti-SLAPP papers and the cross-noticed §436 papers do not engage the regulations and treat the regulatory channel as absent

b. Record reference: Defendants’ Motion to Strike package filed Apr. 9, 2026 (Doc. Nos. 017 to 020); Defendants’ Reply filed May 5, 2026 (Doc. No. 080)

2. 10 CCR §2695.2(c), (t), (y) (definitions of “claim,” “proof of claim,” and “investigation”)

a. Defense conduct: the carrier cannot deny “claimant” status under §2695.2(c) for regulatory purposes while asserting “petitioning” status under §425.16 for the same

1 letters directed at that claimant; the silent witness materials were either in the
2 carrier's possession or readily obtainable, and the twenty-one-day closure precluded
3 any compliant proof-of-claim or investigation under §§ 2695.2(t) and (y)

4 b. Record reference: February 25, 2021 denial; Dolan production of silent witness
5 materials served on defense counsel of record (Aug./Sept. 2022); Substitution of
6 Attorney filed May 4, 2023, Trans. ID 69953800

7 3. 10 CCR §2695.3 (file and record documentation; reconstruction-grade claim files)

8 a. Defense conduct: the May 4, 2023 inter-firm transfer was effected without reconstruction-
9 grade documentation in the produced file; the panel-counsel motion-in-limine "un-
10 known origin" representations are inconsistent with materials present in the carrier's
11 file since 2021; the produced file lacks a contemporaneous silent-witness retrieval
12 log

13 b. Record reference: Substitution of Attorney filed May 4, 2023, Trans. ID 69953800;
14 CGC-21-594102 motions in limine 6 and 17

15 4. 10 CCR §2695.4(a) (representations to claimants; disclosure of benefits, coverages, time
16 limits, and applicable policy provisions)

17 a. Defense conduct: the February 25, 2021 denial fails as third-party-facing correspon-
18 dence; it does not disclose regulatory rights under §790.03(h) and 10 CCR §§ 2695.1
19 et seq., omits contemplated reconsideration paths, and asserts denial without tying
20 its conclusions to specific policy provisions and file entries

21 b. Record reference: February 25, 2021 written denial

22 5. 10 CCR §2695.5(b), (c) (fifteen-day complete-response and acknowledgment require-
23 ments)

24 a. Defense conduct: the twenty-one-day denial combined with the absence of interim
25 status or reservation letters indicates non-compliance across the operative interac-
26 tions

27 b. Record reference: claim file chronology lodged with Notice of Lodging on file in
28 CGC-25-631801

- 1 6. 10 CCR §2695.7(b), (b)(1), (b)(3) (forty-day determination; written statement of all
2 bases for denial; Department of Insurance review notice)
- 3 a. Defense conduct: the conclusory “carefully reviewed” recital in the February 25,
4 2021 denial violates the “all bases” requirement of §2695.7(b)(1); the denial omits
5 the Department of Insurance review notice required by §2695.7(b)(3) on the face
6 of the letter
- 7 b. Record reference: February 25, 2021 written denial
- 8 7. 10 CCR §2695.7(c)(1) (status updates when more time is needed; thirty-day update
9 cadence)
- 10 a. Defense conduct: premature closure at twenty-one days forecloses the status-letter
11 regime entirely
- 12 b. Record reference: February 25, 2021 written denial
- 13 8. 10 CCR §2695.7(d) (thorough, fair, and objective investigation duty)
- 14 a. Defense conduct: the twenty-one-day closure without retrieving silent witness ma-
15 terials negates any thorough investigation; Egan, 24 Cal.3d at 818 to 819, supplies
16 the mirror-image common-law duty
- 17 b. Record reference: February 25, 2021 denial; absence of silent-witness retrieval log
- 18 9. 10 CCR §2695.7(g) (no unreasonably low settlement offers)
- 19 a. Defense conduct: a denial-as-zero posture without investigation is unreasonably
20 low under §2695.7(g)
- 21 b. Record reference: February 25, 2021 written denial
- 22 10. 10 CCR §2695.8 (additional auto-specific duties for automobile insurance claims)
- 23 a. Defense conduct: the underlying claim was an automobile collision; the premature
24 denial foreclosed any compliant auto-claim architecture under §2695.8
- 25 b. Record reference: claim number 1004-09-1054 (auto collision claim of February 4,
26 2021)

1 Section IV-A.3 - Failure-to-Investigate Doctrine: Egan, Wilson, Engalla

2 The investigative duty is well-settled in California law. Egan v. Mutual of Omaha Ins. Co.
3 (1979) 24 Cal.3d 809, 818 to 819, holds that “an insurer cannot reasonably and in good faith
4 deny payments to its insured without thoroughly investigating the foundation for its denial.”
5 Wilson v. 21st Century Ins. Co. (2007) 42 Cal.4th 713 defines the genuine-dispute boundary;
6 the twenty-one-day denial in this case precludes any Wilson genuine-dispute defense as a
7 matter of law. Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951 describes
8 reckless disregard as a basis for civil liability. The combined effect of Egan, Wilson, and
9 Engalla with §790.03(h)(3) and 10 CCR §2695.7(d) is that Defendants cannot rebrand the
10 regulated insurance product as petitioning speech to escape the floor that statute, regulation,
11 and decisional law each independently impose.

12 Section IV-A.4 - Panel-Counsel Veil Cannot Shield the Carrier

13 Defendants imply that retained panel counsel acts independently and that any tribunal-
14 facing conduct in the underlying CGC-21-594102 action is unattributable to CSAA. The
15 argument fails on six independent grounds:

- 16 1. Agency. Civil Code sections 2295, 2299, 2330, and 2338 codify principal liability for
17 agents acting within course and scope, including ratification. Evidence Code section
18 1222 covers authorized statements offered against a party. CSAA retained, paid, super-
19 vised, and ratified successive panel counsel in the underlying CGC-21-594102 defense.
- 20 2. Tripartite relationship. San Diego Federal Credit Union v. Cumis Insurance Society,
21 Inc. (1984) 162 Cal.App.3d 358, and Civil Code section 2860 frame the insurer-insured-
22 counsel architecture; the carrier is not a stranger to panel counsel’s conduct in the
23 underlying action.
- 24 3. Section 425.17(c) reaches conduct delivered through agents. Subdivision (c) reaches
25 causes of action arising from “any statement or conduct ... made in the course of deliv-
26 ering” goods or services. The text reaches contractors and agents, not only employees.
- 27 4. Flatley gateway is speaker-neutral. Flatley v. Mauro (2006) 39 Cal.4th 299, 317 to
28 320, and Lefebvre v. Lefebvre (2011) 199 Cal.App.4th 696 confirm that conduct illegal

as a matter of law is unprotected at the §425.16 gateway irrespective of the speaker's identity.

5. Rules of Professional Conduct. California Rules of Professional Conduct, rules 3.3(a)(1) (false statements to tribunal); 3.3(b) (remedial measures); 3.4(b) (suppression of evidence legally obligated to produce); and 8.4(c) (dishonesty and misrepresentation), apply to panel counsel directly. The tribunal statements identified in Section IV-A.1 above remain inconsistent with the file panel counsel possessed and that transferred between firms on May 4, 2023.

6. Business and Professions Code section 6128(a). Section 6128(a) reaches deceit toward court or party. Shafer v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2003) 107 Cal.App.4th 54, 79 to 80, extends civil exposure for reckless disregard toward adverse non-clients.

The carrier cannot use panel counsel to insulate itself from conduct that simultaneously violates Insurance Code §790.03(h), 10 CCR §§ 2695.1 et seq., the Rules of Professional Conduct, and Business and Professions Code §6128(a).

Section IV-A.5 - Cross-References

This Section IV-A is cross-referenced as follows:

1. Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8), filed May 7, 2026, Sections A and B (verbatim text of each provision identified herein), incorporated under CRC 3.1113(j) and 3.1306(c).
2. Plaintiff's Request for Judicial Notice (filed May 7, 2026) Section B (full enumeration of Insurance Code and 10 CCR provisions).
3. Plaintiff's Consolidated Operative Opposition (filed May 7, 2026) §§ III, IV, V (CCP §425.17(b) public-interest exclusion; Flatley illegality; prima facie merit).
4. Plaintiff's Supplemental Bench Briefs filed May 5, 2026 (Doc. Nos. 069, 071, 075, 077; Trans. IDs 79390442, 79390024) (CCP §425.17(c) commercial-speech exclusion).
5. Plaintiff's Declaration in Opposition (filed May 7, 2026) Part B ¶¶ 19 to 32 (sworn

1 record corresponding to the conduct documented in Sections IV-A.1 and IV-A.2 above).
2 6. Plaintiff's Indexed Exhibits Volume (filed May 7, 2026) Tabs 1, 4, 7, 15, 16, 17 (record
3 exhibits corresponding to the conduct documented in Sections IV-A.1 and IV-A.2
4 above).

6 Section V - CCP §425.17(e) Preclusion of Interlocutory Appeal When the Motion Is Denied
7 on §425.17 Grounds

8 CCP §425.17(e) provides, verbatim:

9 "If any trial court denies a special motion to strike on the grounds that the action
10 or cause of action is exempt pursuant to this section, the appeal provisions in
11 subdivision (i) of Section 425.16 and Section 904.1 do not apply to that action or
12 cause of action."

13 (Stats. 2003, ch. 338, codified at CCP §425.17(e). Plaintiff respectfully requests judicial
14 notice of the statutory text under Evid. Code §451(a) and §453.)

15 Plaintiff respectfully notifies the Court that, under §425.17(e), a denial on §425.17(b) (or
16 §425.17(c)) grounds is not subject to immediate interlocutory appeal under §425.16(i) or
17 CCP §904.1; the case continues in the trial court. This places before the Court the Legisla-
18 ture's deliberate sequencing: where §425.17 applies, the strategic value of an interlocutory
19 anti-SLAPP appeal as a delay-and-leverage device is removed by statute. Plaintiff respect-
20 fully submits that this sequencing is one of the reasons §425.17 exists.

22 Section VI - Five-Row Record of Contradictions Between Defendants' Representations and
23 the Certified Court Record

24 Plaintiff's Declaration in Opposition (filed May 7, 2026) contains sworn paragraphs corre-
25 sponding to each row below: rows 1 to 4 correspond to Part B, ¶¶ 19 to 32 (sworn record
26 of contradictions); row 5 corresponds to Part C, ¶¶ 33 to 40 (sworn observation re defense
27 litigation conduct and effect on pro per plaintiff). The five rows below are presented to the
28 Court in tabular format for ease of bench review. Each row is anchored to a specific Trans.

1 ID or document number (Evid. Code §452(d)) and to plaintiff’s sworn paragraphs in the
2 Declaration (Evid. Code §452(d) (court record); CCP §2015.5 (declaration)). Plaintiff does
3 not characterize defense conduct beyond what each row’s certified record documents; the
4 record speaks for itself.

- 5 1. a. Defense representation (filing date, document title, pinpoint): “Plaintiff... had the
6 opportunity to present to the Jury all the evidence he here complains about.” (Reply
7 filed May 5, 2026, Doc. No. 080, p. 4 ll. 7 to 8)
- 8 b. Certified court record contradicting the representation: Substitution of Attorney
9 filed May 4, 2023, Trans. ID 69953800; Defense Motions in Limine Nos. 6 and 17
10 (granted, excluding 911, BWC, CAD); trial RT excerpt of defendant authentication
11 of 911 audio
- 12 c. Cross-reference: Plaintiff Decl. (filed May 7, 2026) ¶¶ 19 to 22; Indexed Exhibits
13 Vol. (filed May 7, 2026) Tabs 1, 4, 7
- 14 2. a. Defense representation (filing date, document title, pinpoint): “These acts (trans-
15 ferring a defense file via email correspondence) are certainly communicative insofar
16 as they require communication qua communication to effectuate such defense team
17 file transfer.” (Reply filed May 5, 2026, Doc. No. 080, p. 3 ll. 13 to 15)
- 18 b. Certified court record contradicting the representation: Substitution of Attorney
19 filed May 4, 2023, Trans. ID 69953800 (court-filed fact, not a private communica-
20 tion)
- 21 c. Cross-reference: Plaintiff Decl. (filed May 7, 2026) ¶¶ 23 to 26; Indexed Exhibits
22 Vol. Tab 1
- 23 3. a. Defense representation (filing date, document title, pinpoint): Plaintiff’s gravamen
24 language is “by definition, communicative acts.” (Reply filed May 5, 2026, Doc.
25 No. 080, p. 2 ll. 9 to 12)
- 26 b. Certified court record contradicting the representation: Operative First Amended
27 Complaint filed Feb. 25, 2026 (Doc. No. 007) pleads concealment plus reliance;
28 Kulchar v. Kulchar (1969) 1 Cal.3d 467 and Stevenot v. Stevenot (1984) 154

Cal.App.3d 1051 (Pool A authorities cited in Operative Opposition §V) require neither communication itself

c. Cross-reference: Plaintiff Decl. (filed May 7, 2026) ¶¶ 27 to 29

4. a. Defense representation (filing date, document title, pinpoint): Fee prayer of \$16,519.50 supported by 81.7-hour summary at \$210 per hour, plus 2 hours hearing time. (Reply filed May 5, 2026, Doc. No. 080, p. 5 ll. 8 to 10; O’Connell Decl. filed May 5, 2026, Doc. No. 081, ¶ 6)

b. Certified court record contradicting the representation: Exhibit A to O’Connell Decl. filed May 5, 2026 is a redacted summary, not contemporaneous billing records; lacks Evid. Code §1271 mode-of-preparation foundation; lacks Evid. Code §1521 best-evidence foundation

c. Cross-reference: Plaintiff Decl. (filed May 7, 2026) ¶¶ 30 to 32; Plaintiff’s Evidentiary Objections (filed May 7, 2026) Objections 1 and 2

5. a. Defense representation (filing date, document title, pinpoint): “Plaintiff persists in litigating this case as if the rules do not apply to him... gamesmanship... overburden and harass.” (Reply filed May 5, 2026, Doc. No. 080, p. 1 l. 24 to p. 2 l. 1)

b. Certified court record contradicting the representation: Plaintiff filed Notice of Withdrawal and Designation (May 7, 2026) and the 15-page Consolidated Operative Opposition (May 7, 2026), curing the defects identified in the Reply; CRC 3.1113(g) and CRC 3.1300(d) authorize and accept such cures

c. Cross-reference: Plaintiff Decl. (filed May 7, 2026) ¶¶ 33 to 40; Cover Letter (filed May 7, 2026) §§ 2, 3, 8

Section VI-A - Chain-to-Effect-to-Harm: Prior Knowledge, Misrepresentation, Judicial Reliance, and Resulting Exclusion of Silent Witness Materials

Plaintiff respectfully presents the following four-table chain-to-effect-to-harm analysis demonstrating the causal link between (i) defense’s prior knowledge and possession of silent witness materials, (ii) defense’s trial-time misrepresentations to the court, (iii) the specific judicial

1 rulings those misrepresentations procured, and (iv) the specific harm to plaintiff's case.

2 Table 1: Prior Knowledge and Possession

- 3 1. a. Document / Event: Reyna Complex Subpoena CA1147102-021, served on San Fran-
4 cisco Police Department, Records Division, commanding production of 911 record-
5 ings, body-worn camera footage, CAD logs, and "all documents and records stored
6 in any format" relating to Report No. 210079556
7 b. Date: Feb. 1, 2024
8 c. Significance: Defense counsel of record affirmatively subpoenaed the same materials
9 later disclaimed at trial
- 10 2. a. Document / Event: CSAA Insurance Exchange denial letter reciting "concluded
11 investigation"
12 b. Date: Feb. 25, 2021
13 c. Significance: Insurer "concluded" its investigation 21 days post-collision without
14 obtaining any silent witness materials; Cal. Ins. Code section 790.03(h) and 10
15 Cal. Code Regs. section 2695.7 required obtaining readily available emergency-
16 services media before disclaiming coverage
- 17 3. a. Document / Event: Dolan discovery production of silent witness materials served
18 on defense counsel
19 b. Date: Aug./Sept. 2022
20 c. Significance: 911 audio, BWC footage, and CAD logs served on defense counsel of
21 record in the underlying action
- 22 4. a. Document / Event: Substitution of Attorney filed May 4, 2023, Trans. ID 69953800
23 b. Date: May 4, 2023
24 c. Significance: Defense file containing those materials transferred to successor counsel

25 Table 2: Defense Trial-Time Misrepresentations (RT Citations)

- 26 1. a. Statement: "This is news to me"
27 b. Speaker: Navaratnasingham
28 c. Date / RT Cite: Feb. 18, 2025, p. 6, ll. 3-14

- d. Context: Re 911 audio provenance
2. a. Statement: “we did not receive the 911 call until the day of the MSC”
 - b. Speaker: Defense counsel
 - c. Date / RT Cite: Feb. 18, 2025, p. 6
 - d. Context: Re timing of receipt
3. a. Statement: “we did not have those two items”
 - b. Speaker: Defense counsel
 - c. Date / RT Cite: Feb. 18, 2025, pp. 27-30
 - d. Context: Re 911 and BWC
4. a. Statement: “not anything that we received as part of the subpoena”
 - b. Speaker: Reyna
 - c. Date / RT Cite: RT 7, p. 156
 - d. Context: Re subpoena production
5. a. Statement: “I am not sure what recording he is referring to”
 - b. Speaker: Reyna
 - c. Date / RT Cite: RT 7, p. 162
 - d. Context: Re 911 audio identity
6. a. Statement: THE ADMISSION: “Sure. They were provided by Dolan.”
 - b. Speaker: Reyna
 - c. Date / RT Cite: Apr. 16, 2025, RT 7, p. 213, ll. 13-15
 - d. Context: Contradicts all prior denials; confirms Dolan production

Table 3: Judicial Reliance and Rulings Procured by the Misrepresentations

1. a. Ruling: Motion in Limine No. 6 granted (excluding 911 audio)
 - b. Date: Jan. 2025
 - c. Misrepresentation relied upon: Table 2, Rows 1-3
 - d. Court’s articulated basis: Defense representations re provenance and non-receipt
2. a. Ruling: Motion in Limine No. 17 granted (excluding BWC footage)
 - b. Date: Jan. 2025

- c. Misrepresentation relied upon: Table 2, Rows 1-3
 - d. Court's articulated basis: Same
3. a. Ruling: Continuance denied
 - b. Date: Feb. 18, 2025, p. 181
 - c. Misrepresentation relied upon: Table 2, Rows 1-3 (court treated provenance as unresolved because of defense denials)
 - d. Court's articulated basis: Plaintiff could not cure "provenance" issue created by defense's own denials
4. a. Ruling: Burden-shift imposed on plaintiff
 - b. Date: Feb. 28, 2025, p. 293
 - c. Misrepresentation relied upon: Table 2, Rows 1-5
 - d. Court's articulated basis: "it's required of you to send the documents over. Otherwise, I won't allow them in."
5. a. Ruling: Court's articulated reliance on defense counsel's representations
 - b. Date: Feb. 28, 2025, pp. 291-292
 - c. Misrepresentation relied upon: All of Table 2
 - d. Court's articulated basis: "I'm not going to question a lawyer's remarks... They are an officer of the Court"

Table 4: Resulting Harm to Plaintiff's Case

1. a. Ruling (from Table 3): MIL No. 6 (911 excluded)
 - b. Specific prejudice: Jury never heard 911 recording containing Abdelhalim's "I barely hit him" admission and the contemporaneous res gestae of the collision
 - c. Effect on verdict: Most powerful liability evidence excluded
2. a. Ruling (from Table 3): MIL No. 17 (BWC excluded)
 - b. Specific prejudice: Jury never saw body-worn camera footage of the scene, injuries, and responding officers' observations
 - c. Effect on verdict: Corroborative visual evidence excluded
3. a. Ruling (from Table 3): Continuance denied

- b. Specific prejudice: Plaintiff denied continuance to cure “provenance” issue that was entirely manufactured by defense’s own false denials
- c. Effect on verdict: Plaintiff forced to trial without the evidence
4. a. Ruling (from Table 3): Burden shifted to plaintiff
- b. Specific prejudice: Burden shifted to plaintiff to re-prove materials already in defense possession since Aug./Sept. 2022 and affirmatively subpoenaed in Feb. 2024
- c. Effect on verdict: Impossible standard imposed based on false premise
5. a. Ruling (from Table 3): Cumulative effect
- b. Specific prejudice: 9-3 verdict obtained in environment where most powerful liability evidence was excluded based on defense misrepresentations
- c. Effect on verdict: Verdict tainted by the exclusion of evidence that defense’s own counsel had subpoenaed, received, and then disclaimed

Cross-references: Plaintiff Decl. (filed May 7, 2026) Part A paragraphs 7, 16, 16A; Indexed Exhibits Vol. (filed May 7, 2026) Tabs 15, 16, 17; RJN (filed May 7, 2026) Section A item 11, Section B (Cal. Ins. Code section 790.03(h); 10 CCR section 2695.7).

Section VII - Statement that the Foregoing Record Reflects Defendants’ Reckless Disregard for the Certified Court Record and Is a Contributing Cause of This Litigation

Plaintiff respectfully states that the foregoing five-row record (Section VI) is the same record that, when concealed during the underlying trial, gave rise to the equity claim in this action. The present anti-SLAPP motion repeats the pattern by characterizing certified court records (Substitution of Attorney; defense Motions in Limine; trial RT) as something other than what the docket shows them to be. Plaintiff does not characterize this conduct further; the record speaks for itself.

The §425.17(a) legislative findings (Section I above) provide the interpretive lens: where the structure of the filings on this docket fits the pattern of §425.16 misuse the Legislature found “disturbing” (§425.17(a)), the Court is asked to keep that legislative concern in mind in evaluating the motion.

Section VIII - Effect on This Anti-SLAPP Motion

1. §425.17(b) bars §425.16 entirely as to this action. Operative Opposition §III walks through the three §425.17(b) conditions; if the Court finds them satisfied, the motion fails as a matter of law and no step-one or step-two analysis is required. (See Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316 to 317.)
2. §425.17(c) is preserved as a backstop. Plaintiff's May 5, 2026 Supplemental Bench Briefs (Trans. IDs 79390442 and 79390024) preserve the §425.17(c) commercial-speech analysis. The Operative Opposition (filed May 7, 2026) is the principal vehicle.
3. Under §425.17(e), denial on §425.17 grounds is not subject to interlocutory appeal under §425.16(i) or CCP §904.1. The strategic value of an interlocutory appeal as a delay device is removed by statute. The case continues in the trial court.

Section IX - Statement of Safe-Harbor and §128.7 Preservation

Plaintiff served Defendants with a §128.7(c)(2) Notice of safe-harbor on May 5, 2026, which is on file in this action (Doc. Nos. 073, 079; Trans. IDs 79390024, 79390442). The §128.7 safe-harbor letter dated May 7, 2026 is a separate extrajudicial document; this Notice does not embed its substance. Nothing in this Notice is offered for any purpose other than supporting the Opposition to Defendants' §425.16 motion (see Operative Opposition §VIII for the §425.16(c)(1) frivolousness inversion and the threshold response to Defendants' Reply-embedded section 128.7 sanctions request). The fee-summary defects identified at Section VI row 4 above are independently challenged in Plaintiff's Motion to Strike the May 5, 2026 Reply Declaration of Tyler J. O'Connell and Exhibit A (filed May 7, 2026), incorporated under CRC 3.1113(j); see also the per-objection written-ruling request under CRC 3.1306(a) in Plaintiff's Motion to Strike Reply Declaration (filed May 7, 2026) and Plaintiff's Evidentiary Objections (filed May 7, 2026). Cross-hearing notice: the §128.7 safe-harbor letter served May 7, 2026 was directed to counsel of record in both CGC-25-631801 (this action, Department 301) and CGC-25-631802 (companion case, Department 302, hearing May 18,

2026, 9:00 a.m., Hon. Garrett L. Wong) as both cases share the same defense counsel and the same frivolous litigation pattern described in this Notice.

Section X - Signature and Verification

Plaintiff signs this Notice under penalty of perjury under California law (CCP §2015.5) as to the percipient-fact assertions in Section VI (which cross-reference Plaintiff's Declaration in Opposition Part B, ¶¶ 19 to 32, separately signed under §2015.5). Plaintiff signs without verification as to the legal arguments in Sections I to V, VII, VIII, IX (which are submitted under §128.7 standards).

I declare under penalty of perjury under the laws of the State of California that the percipient-fact assertions cross-referenced in Section VI above are true and correct.

Executed on May 7, 2026, at San Francisco, California.

By: _____ Franciscus Dylan Rosario, Plaintiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Cross-references: Plaintiff's Consolidated Operative Opposition (filed May 7, 2026) §§ III, V, VII; Plaintiff's Declaration in Opposition (filed May 7, 2026) Part B ¶¶ 19 to 32 and Part C ¶¶ 33 to 40; Plaintiff's Request for Judicial Notice (filed May 7, 2026) Sections A, B, C; Plaintiff's Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) (filed May 7, 2026) Sections A, B; Plaintiff's Evidentiary Objections (filed May 7, 2026) Objections 1 and 2; Plaintiff's Notice of Withdrawal and Designation (filed May 7, 2026); Plaintiff's Cover Letter (filed May 7, 2026); Plaintiff's Supplemental Bench Briefs filed May 5, 2026 (Trans. IDs 79390442, 79390024).

The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928
Tel: 650.488.7510
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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:30 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 425.17(a)	Legislative findings (verbatim)	Section I quotes section 425.17(a) verbatim	Section I	PASS
2	CCP section 425.17(b)	Public-interest categorical exclusion	Section II identifies (b) as principal ground; Operative Opposition section III walks through (b)	Section II; Operative Opposi- tion section III	PASS
3	CCP section 425.17(c)	Commercial-speech exclusion (c)(1) to (c)(4)	Section III preserves (c) as backstop; new Section III-A walks (c)(1) to (c)(4) citing Simpson Strong-Tie, Persolve, JAMS	Section III; Section III-A	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
4	CCP section 425.17(e)	Preclusion of interlocutory appeal on section 425.17 denial	Section V quotes section 425.17(e) verbatim and identifies the preclusion	Section V	PASS
5	CCP section 128.7(c)(2)	Safe-harbor preservation	Section IX preserves the May 5 safe-harbor	Section IX	PASS
6	Evid. Code section 451(a)	Mandatory judicial notice of statutes	Section I and section V invoke section 451(a) as to statutory text	Sections I, V	PASS
7	Evid. Code section 452(d)	Permissive judicial notice of court records	Section IV and section VI invoke section 452(d) as to docket entries	Sections IV, VI	PASS
8	Evid. Code section 1280	Official-records exception applied to court-record contradictions	Section VI relies on certified court-record entries (Substitution of Attorney; MILs; trial RT)	Section VI	PASS
9	Evid. Code section 1530	Certified-copy presumption applied to docketed materials	Section VI relies on certified-copy presumption for docket items	Section VI	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
10	CRC 3.1112(b)	Other papers (notice and statement)	Notice expressly filed under CRC 3.1112(b); not subject to 15-page memorandum cap	Notice caption and authority statement	PASS
11	CRC 3.1113(j)	Incorporation by reference	Notice incorporates Operative Opposition, RJN, Supplemental RJN, Declaration, Evidentiary Objections, Notice of Withdrawal	Section IV-A.5; cross- references	PASS
12	CRC 3.1306(c)	Notice of intent to rely on extra-record authorities	This filing is the notice required by CRC 3.1306(c)	Notice body	PASS
13	CCP section 1005(b)	Notice timing	Filed concurrently with the Operative Opposition on May 7, 2026	Caption and filing date	PASS
14	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
15	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
16	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
17	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Section X sworn closing; unified graphic filing signature preceding roman appendix	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
18	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
19	CRC 3.1112	Other papers; required components	Caption, notice body, Section X signature, companion Proof of Service filed concurrently	Notice through Section X; graphic signer before appendix; Proof of Service	PASS